

Company: «CompanyName»

Insured: «NamedInsured»

Policy Number: «PolicyNum»

Endorsement Effective Date: «PolEffDate»

PUBLIC COMPANY MANAGEMNT LIABILITY INSURANCE AMENDED DEFINITION OF CLAIM TO INCLUDE INVESTIGATIVE INQUIRY

It is agreed that:

1. Section II. Extensions, B. Investigative Inquiry Coverage of the Directors & Officers Coverage (Part 1) of this Policy is deleted in its entirety.
2. Section III. Definitions, A. **Claim** of the Directors & Officers Coverage (Part 1) of this Policy is amended by the addition of the following:
 - A. **Claim** shall also include any **Investigative Inquiry**.
3. Solely with respect to the coverage provided by this endorsement, the last paragraph of Section III. Definitions, A. **Claim** of the Directors & Officers Coverage (Part 1) of this Policy is deleted in its entirety and replaced with the following:

Claim shall not include a **Derivative Demand**, **Subpoena** or any labor or grievance proceeding or investigation which is subject to a collective bargaining agreement. A **Claim** shall be deemed to have been first made at the time written notice of the **Claim** is first received by any **Insured**. All **Claims** arising out of the same **Wrongful Act** or **Interrelated Wrongful Acts** shall be deemed to be a single **Claim** first made on the date on which the earliest such **Claim** was first made.
4. Section Part 4, Common Definitions, G. **Damages**, subsection 1. of this Policy is amended by the addition of the following:
 - G. **Damages** means the monetary portion of any award, settlement or judgment, including pre-judgment and post-judgment interest, provided always that **Damages** shall not include:
 1. taxes, civil fines, criminal fines, sanctions, fees, restitution or penalties imposed by law, statute, regulation or court rule, except;
 - e. civil fines or penalties, if insurable under the law pursuant to which this Policy is construed, assessed against an **Insured Person** solely as a result of an **Investigative Inquiry**.
5. Section Part 4, Common Definitions, H. **Defense Costs** of this Policy is deleted in its entirety and replaced with the following:
 - H. **Defense Costs** means reasonable and necessary fees and expenses incurred with the **Insurer's** prior written consent to defend the **Insured**, and if authorized by the **Insurer**, all other fees and expenses resulting from the investigation, adjustment, defense or appeal of any **Claim** including the cost of appeal bonds; however, the **Insurer** shall have no obligation to apply for or furnish appeal bonds on behalf of any **Insured**. **Defense Costs** shall also include **Sox 304/Dodd-Frank 954(b) Costs**.

Defense Costs shall not include salaries and expenses of regular employees or officers of the **Insurer** or any salaries, wages, fees, costs or expenses of any **Insured**. **Defense Costs** shall be part of, and not in addition to, the **Applicable Limit of Liability**
6. Section Part 6, Common Conditions, C. Retention, subsection 4. of this Policy is deleted in its entirety.

Whenever printed in this Endorsement, the boldface type terms shall have the same meanings as indicated in the Policy Form.

ALL OTHER TERMS, CONDITIONS AND EXCLUSIONS REMAIN UNCHANGED.